# IP INFORMATION DOCUMENT

LEXTRIA RESEARCH

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|---|---|
| Submitted To: | **R V University** |
| Prepared By: | Pranav Bhat |
| Quote Valid of the year: | 2026-27 |
| Contact No. | 9035685434 / 8971411232 |
| Email: | info@lextria.in / pranavbhat@lextria.in |

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*Details mentioned here are for illustration purpose only

# IP INFORMATION DOCUMENT - PATENT

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## STEPS FOLLOWED BY LEXTRIA RESEARCH TO DRAFT AND FILE AN APPLICATION

| STEP 1 | STEP 2 | STEP 3 | STEP 4 | STEP 5 | STEP 6 |
|---|---|---|---|---|---|
| Filling Invention Disclosure (IDF) Form by the inventor | Call to discuss the invention with Team Lextria to decide filing of PS or CS | Drafting of the invention by Team Lextria | Confirmation of the draft and confirmation of the inventor details by the Inventors | Filing of the Application and Communication of Application Number with Ack and Form 1 for Signature | Providing Signed Form 1 within 3 months and providing evidence within 12 months in case of PS |

PS - Provisional Specification
CS - Complete Specification



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# TESTS FOR SELECTING A PATENT APPLICATION

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1

Whether the idea has been tested for feasibility ?

- No, need some time for R&D
  - File provisional and get 12 months time
- Yes, have clarity over the product that goes into market
  - File complete specification

2

Complete specification already filed

- Observed just an improvement
  - File patent of addition
- Observed significant change
  - Convert into provisional application and later follow-up with a complete specification
- Observed a different point of novelty
  - File divisional application

3

Product is not finalised but multiple inventive steps are observed

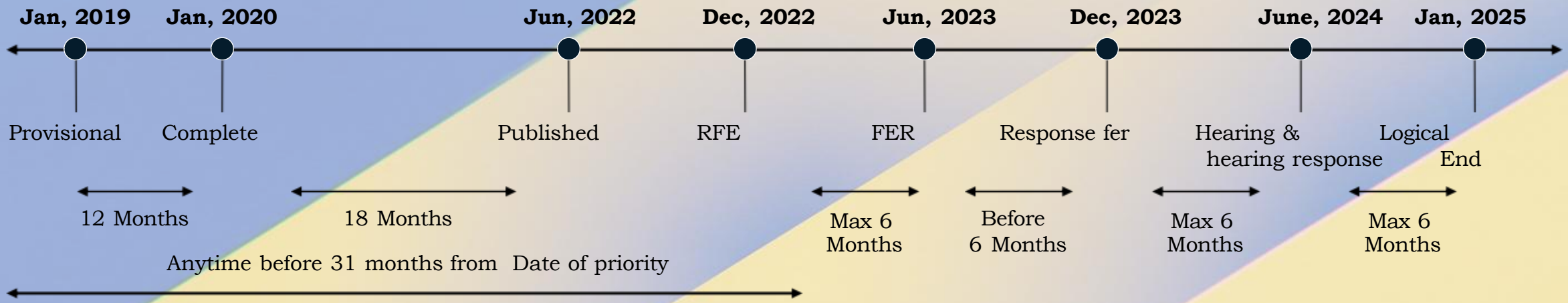
- File provisional specification to secure priority to each of such steps
- Follow-up with a complete specification before 12 months from data of filing first provisional specification



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# PATENT CYCLE - EXEMPLARY SCENARIO:

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## Note:

1. Date of priority is date of filing provisional application. In case complete specification is directly filed, date of priority is date of filing of the complete specification.
2. RFE: Request For Examination has to be paid before 31 months from date of priority.
3. FER: First Examination Report shall be issued anytime before 6 months if REF is already filed.
4. Early publication request gets the application published as soon as possible.
5. Expedited examination is available only for Start-ups, SMEs, female applicants, Govt depts. and those who made India as search authority in foreign filings. In case of Expedited Examination, it takes about half the time as normal proceedings.
6. Logical End may include Grant/Refusal. In case of refusal, filing review petition.
7. RFE, Early publication, Expedited examination have stipulated govt. fees as discussed in the Schedule of Fees



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# SOME Keywords

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| APPLICANT | INVENTOR |
|---|---|
| Applicant may be a Legal person or a natural person | Inventor should always be a natural person |
| | |
| **PROVISIONAL SPECIFICATION** | **COMPLETE SPECIFICATION** |
| Provisional specification is filed with limited information to secure the concept and priority date before any possible public disclosure | Complete specification is filed with best possible information and evidence of validation to secure grant |
| | |
| **First Examination Report (FER)** | **HEARING** |
| It is a first communication from patent office, and includes certain objections observed by the patent office and to be complied with in 6 months in writing | It is an opportunity to defend the application via placing oral arguments, and it shall be the final stage |



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# SOME FAQs

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| Sl. No | QN | ANS |
|---|---|---|
| 1 | What would happen if complete specification is not filed after provisional specification? | The Application would be abandoned; the priority would be lost. However, it shall not affect novelty so it can be refiled. |
| 2 | Can time to file complete specification be extended ? | Yes, it can be extended up to 6 months with fees and with loss of priority. |
| 3 | How much time it might take for the patent to be published and granted ? | It takes about 18 months for the patent to be published in case of early publication with fees, it might take about 1 month until then the Application is confidential. It might take about 12 to 30 months for the patent to be granted. |
| 4 | Is it compulsory for a prototype to be made ? | As per patent act, it's important to provide best method of working and evidence of working. It may or may not be prototype. However, in case if it is asked by patent office it may be a necessity. |



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# Quotation for Patent Filing

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| Sl. No | Service | Item | Official Fees | Service Fees | Total Fees |
|---|---|---|---|---|---|
| 1 | Patentability Search | Non-Paid Databases | 0 | No fee | No fee |
| 2 | Application for patent | With Provisional Specification | INR 1600 | INR 15000 | INR 16600 |
| | | Complete Specification within 12 months | INR 0 | INR 11500 | INR11500 |
| | | **OR** | | | |
| | | Direct Complete Specification filing | INR 1600 | INR 25000 | INR 26600 |
| 3 | Publication & examination | Request for early publication and Request for expedited examination - Form 9 and Form 18A | INR 10,500 | INR 2,500 | INR 13,000 |
| | | **OR** | | | |
| | | Request for early publication and Request for examination - Form 9 and Form 18 | INR 6,500 | INR 2,500 | INR 9,000 |
| 4 | Reply to examination | Reply to First Examination Report | 0 | INR 18,000 | INR 18,000 |
| 5 | Hearing | Hearing Before Controller | 0 | INR 8,000 | INR 8,000 |
| 6 | Written Submission | Communicating final written Submission | 0 | INR 20,000 | INR 20,000 |

Government fees for large entities shall differ from those indicated above. Miscellaneous compliance forms shall attract the applicable Government fee plus a professional fee of ₹2,000/- per form. Payments are structured on a stage-wise basis; no payment shall be due for any stage deemed inapplicable. Stamp duty, courier, and other charges shall be communicated separately. All fees are exclusive of GST/RCM.